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U.S. Department of State Diplomacy in Action

El Salvador

Country Reports on Human Rights Practices

Bureau of Democracy, Human Rights, and Labor

1999

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El Salvador is a constitutional, multiparty democracy with an executive branch headed by a president and a unicameral legislature. In a free and fair process, Francisco Flores of the Nationalist Republican Alliance (ARENA) was elected President in March and began his 5-year term in June. In free and fair legislative elections in March 1997, the former guerrilla organization Farabundo Marti National Liberation Front (FMLN) won one-third of the seats in the Legislative Assembly, leaving the ARENA party with a one-vote plurality. Seven other parties, representing a broad political spectrum, hold seats, including the conservative National Conciliation Party and the centrist Christian Democratic Party. The judiciary is constitutionally independent but suffers from inefficiency and corruption.

Under the terms of the Peace Accords that ended the 12-year civil war in 1992, the Government has reduced the armed forces; removed the internal security function from the armed forces and placed it under civilian control; and replaced the discredited National Police with a new Civilian National Police (PNC). The former guerrillas have been integrated fully into the political system. The armed forces are less than one-fourth the size they were in 1991, and instruction in human rights is a routine part of the training for all military personnel. Although its internal policing mission has been eliminated, the military continues to provide support, on an emergency basis, for some PNC patrols in rural areas, a measure begun in 1995 to contain violence by well-armed, organized criminal bands. The PNC's level of professionalism continued to improve, but the force remains understaffed, undertrained, underfunded, and short on practical experience. Civilian authorities maintained effective control of the military and security forces. Some members of the police committed human rights abuses.

The country has a market-based, mixed economy largely based on agriculture and manufacturing. Some 40 percent of the work force are in the agricultural sector; coffee and sugar are the principal export crops and major sources of foreign exchange. The manufacturing sector employs 6.4 percent of the work force, is dominated by apparel manufacturing (mostly in export processing zones), and represents the main source of new jobs. The Government is committed to privatization and free market reforms. The economy is open, and private property is respected. The rate of real economic growth was about 2 percent, and per capita gross domestic product was estimated to be \$2,024. The official unemployment rate averaged 7.5 to 8 percent during the year; however, the rate of underemployment (less than full-time work or total income below the minimum wage) was estimated at about 30 percent. About 45 percent of the population live below the poverty level.

There continued to be some problems in the Government's human rights record; however, the Government's performance continued to improve somewhat. There were several cases of reported extrajudicial killings by police. The police sometimes used excessive force, mistreated detainees, and arbitrarily arrested and detained persons; however, the PNC improved its

procedures. The PNC, the Attorney General's office and the independent PNC Inspector General's office (IG) sought to identify and to punish police who committed criminal acts or violated established procedures, although with mixed results. There was a reduction in the number of human rights complaints against the police compared with the previous year. Prison conditions remained poor, but the Government continued to improve conditions and significantly reduced overcrowding. The judiciary remains inefficient; however, it made considerable progress in clearing up its backlog of cases, and the court system began to reduce lengthy pretrial detention and delays in trials. Implementation of new criminal and sentencing codes in 1998 continued to have a positive impact on the problems of violation of due process, prison overcrowding, overburdened court dockets, and trial delays. The Supreme Court made further progress in increasing the professionalism of the judiciary, but disciplining or dismissing corrupt or incompetent judges remained a slow process. Impunity for the rich and powerful remained a problem. The office of the Ombudsman for the Defense of Human Rights (PDDH), established by the Constitution and the Peace Accords, was an independent advocate for citizens' rights. However, its investigative capacity remained limited due to resource constraints. In addition, there were continuing complaints from nongovernmental organizations (NGO's) and some legislators about the performance of Ombudsman Eduardo Penate Polanco. Violence and discrimination against women are problems. Discrimination against the disabled and the indigenous remained problems. Abuse of children and forced child prostitution were also problems. The Freedom of Association Committee of the International Labor Organization (ILO) charged that the 1998 dismissal of two groups of employees of the privatized state telephone company violated freedom of association and the right to organize. The Government began several internationally sponsored programs to combat the continuing problem of child labor.

RESPECT FOR HUMAN RIGHTS

Section 1 Respect for the Integrity of the Person, Including Freedom From:

a. Political and Other Extrajudicial Killing

There were no reports of political killings; however, there were several cases of reported extrajudicial killings by police.

In July Wiliam Ernesto Rosales Bonilla, who worked for the major newspaper El Diario de Hoy in a nonjournalistic capacity, was shot five times in the head. Neighbors claimed that just prior to his death, men in civilian dress picked up Rosales at his home and took him away in what was described as a police vehicle. One of the men also took Rosales's personal vehicle. Two PNC agents being investigated in connection with Rosales's murder were part of a group of six PNC agents under investigation in August for burglary of a private residence. However, at year's end, there was no concrete evidence to link Rosales's murder to any police, and the case remained under investigation.

In August three men dressed in what neighbors said appeared to be police uniforms took Fernando Hernandez and Manuel Aguilar away from their home in Hernandez's truck near the western city of San Juan de Opico. The three men rode in the bed of the truck and later appeared to have opened fire on Hernandez (who was driving) and Aguilar (in the passenger seat), killing both and wrecking the truck. Hernandez's family reported that he had been shot at the previous week and blamed a local transportation cooperative that had been trying to stop Hernandez from forming a competing transportation business. In December the authorities arrested three police officers and charged them with the murders. At year's end, one of the accused officers was under detention and the other two were suspended from the police force but free on bail, pending trial.

In August police shot and killed two protesters near Sonsonate during a confrontation between police and several hundred members of the Association of Salvadoran Agricultural Producers (APROAS), the most vocal and militant of several organizations of former militia members. (These loosely organized militias assisted the armed forces in rural areas, but their members were not part of the armed forces and were not included in the settlement offered to most former combatants under the 1992 Peace Accords.) The Sonsonate demonstration was one of a dozen held throughout the country to demand government compensation for some 40,000 to 45,000 persons claiming to be former militia members for their services before and during the civil war. On the day of the killings, several of these organizations blocked major highways with burning tires. While most of the demonstrations were nonviolent, in Sonsonate police were unable to persuade demonstrators to disband peacefully. A clash ensued, and police shot and killed two former militia members. In addition, 7 other former militia members

and 7 PNC agents were wounded; 47 demonstrators were jailed but subsequently were released. APROAS has been involved in several violent clashes with authorities over the years and had made thinly veiled threats of violence prior to the demonstrations. There was evidence that some members of APROAS were armed with machetes, slingshots, and other weapons during the demonstration and were belligerent prior to the killings. There also were charges that the PNC used excessive force. In September the local prosecutor ordered one police officer detained in the deaths of the two former militia members. The police officer, who had been injured by machete in the incident, claimed self-defense. At year's end, the killings still were under investigation.

In November Manuel de Jesus Parada died as a result of a beating after a police patrol flagged down a car to take him to a hospital. The five policemen in the patrol claimed that others beat Parada and that they simply were helping the victim of an assault. However, the Attorney General's office opened an investigation and charged that the five police agents picked up Parada for being drunk, that Parada resisted being taken into custody, and that they then severely beat Parada, causing his death. One of the accused police officers fled and was still at large at year's end; the remaining four officers were in custody awaiting trial. Also in November, police shot and killed Carlos Lopez Regalo on the outskirts of San Salvador. Prior to the shooting, a police patrol stopped to question Lopez, who was standing on the side of a highway attempting to sell wild game. Lopez fled, and in the ensuing foot chase, the police reportedly fired four shots, one of which hit and killed Lopez. Family members claimed that Lopez fled because the police had beaten him on a previous occasion for selling game by the road. At year's end, two police officers were in custody and faced a charge of aggravated homicide in the case.

A number of inmates died in prison due to violence and illness. (See Section 1.c.).

There was mixed progress in cases of extrajudicial killings from previous years.

In 1998 the handcuffed body of Carlos Lobo was discovered in a river near San Salvador. The apparent cause of death was drowning. Two PNC agents had arrested Lobo on suspicion of carrying stolen goods. The PNC agents claimed that Lobo escaped from custody, still handcuffed, and ran toward the area where his body later was found. The PNC told Lobo's father that his son escaped. Both PNC agents involved were placed in custody for "negligence" in allowing Lobo to escape. In February the PNC internal Control Unit found both police officers not culpable for the escape or subsequent death of Lobo, but faulted the senior officer for failure to follow correct procedure to locate Lobo after he fled. The second police officer was a driver, and, according to police regulations, was not allowed to pursue Lobo. In March the PNC Disciplinary Tribunal suspended the senior agent for 362 days. The officer appealed, and his appeal was still under consideration at year's end.

In 1998 PNC agent Mariano Rodriguez shot and killed Jose Antonio Villalta in Santa Tecla. Villalta's family charged that the PNC agent shot him in the back when Villalta attempted to intervene to stop a group of police who reportedly were beating two of his friends. At the end of 1998, the PNC's independent IG office submitted the case to the PNC Control Unit with the recommendation that Rodriguez be investigated for improper use of a firearm. While not citing specific officers, the IG also recommended that other PNC agents be investigated to determine any shared culpability. At year's end, the Control Unit was investigating the case.

In 1996 a PNC agent shot and killed Francisco Manzanares during what the police said was surveillance of ongoing criminal activity during an investigation in an extortion case. Although not active in politics at the time of his death, Manzanares's past as an FMLN combatant and party member raised the issue of political killing. In January a court found four police officers guilty of killing Manzanares (three as accomplices). The court determined that Jose Antonio Guzman Ramirez had fired the gun that killed Manzanares, and sentenced him to 15 years in prison; the other three defendants received 10-year sentences. All four were serving their sentences at year's end.

There were no further developments in the cases of two FMLN activists murdered in Nejapa during the 1997 election campaign. No concrete evidence has been discovered indicating that the killings were politically motivated.

There were no new developments in the 1995 beating death of medical student Adriano Vilanova. In 1998 a jury unanimously found five PNC agents guilty of Vilanova's murder. Another two PNC agents charged with participation in the killing remained at large at year's end. The victim's parents had expressed satisfaction with the guilty verdicts, but they continued to allege that the police were covering up involvement of higher level government officials and called on the police and the Attorney General's office to identify and prosecute the "intellectual authors" of the crime. The case remained open at year's end.

There were no new developments related to the 1994 murder of Ramon Garcia Prieto. In 1996 a court found Jose Argueta Rivas, a former member of the National Police, guilty of the murder, and sentenced him to 30 years in prison. In 1997 the Garcia Prieto family charged before the Inter-American Commission on Human Rights (IACHR) that the Government had failed to investigate the crime properly to determine who ordered the killings. In 1998 the authorities arrested Jose Ismael Ortiz Diaz, a member of a criminal gang, for participating in the murder. At year's end, the case remained open and Ortiz Diaz remained in custody, but no trial date had been set.

In 1998 the authorities charged Ortiz Diaz, who was already under detention for participation in the Garcia Prieto murder, as an accomplice in the 1993 murder of FMLN leader Darol Francisco Velis Castellanos. Carlos Romero Alfaro, a former member of the National Police, also remained in custody. In 1998 the Supreme Court admonished a lower court for the delay in the case; at year's end, the case remained open but there still was no indication when it would go to trial.

In December the IACHR published a report on the 1989 murders of six Jesuit priests, their housekeeper, and her daughter. The report concluded that the State was responsible for violating the right to life of the eight murdered persons and had failed to investigate those violations effectively. The report also criticized the 1993 general amnesty law, which resulted in the release from custody of two military officers found guilty of the murders in 1992, and called on the Government to reopen the case. The Government had not responded to the report as of year's end.

Disappearance

There were no confirmed politically motivated disappearances.

Most cases of disappearances have been kidnaping for profit, a common occurrence affecting all levels of society throughout the country. During the year, the PDDH accepted three cases for investigation charging forced or involuntary disappearance.

In March unknown persons abducted Margarita Posada, the director of the Center for the Defense of the Consumer (a domestic NGO), held her for nearly a day and then released her. Police linked her case to a criminal band captured in May while attempting to negotiate a ransom in another kidnaping. However, Posada said that her abductors released her without making any ransom demands and she asserted that her abduction was an effort to intimidate her for work the Center had done in opposition to powerful business interests. At year's end, the authorities had not charged anyone in the case.

In April unknown assailants kidnaped Miguel Montenegro, president of the Human Rights Commission of El Salvador (CDHES), in San Salvador, drove him around the city for 2 hours and then released him unharmed. During the 2-hour ride, the captors threatened Montenegro and his family, making direct reference to his work in human rights. Montenegro reported this incident to the Government, the police, the PDDH, NGO's, and the diplomatic community. At year's end, the police continued their investigation into the abduction but had made little progress in identifying the perpetrators.

There were no further developments in the 1995 kidnaping of Andres Suster, the 15-year-old son of the former president of the state telephone company. Rumors of political motivation had surrounded the kidnaping. In 1997 police arrested a number of persons in connection with the kidnaping. A principal suspect in the Suster and other kidnapings, who was associated with the disbanded Communist Party, fled the country in 1997. In 1998 a judge ordered five suspects released from detention due to lack of evidence, dropped charges against four additional suspects, and lifted arrest orders against six others. As of year's end, two suspects remained in custody, one suspect had died of natural causes, and one suspect remained at large.

c. Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment

The Constitution prohibits such practices; however, some members of the PNC continued to use excessive force or otherwise mistreated detainees.

During the year, the PDDH accepted 929 complaints (an average of 77 per month) of violation of the right of personal integrity (a category covering torture; inhuman or degrading treatment; mistreatment; disproportionate use of force; and improper treatment of detainees). The PDDH reported that the vast majority of these complaints involved the PNC and were the direct result of minor to serious violations of arrest procedures. Since 1996 complaints have fallen. From June 1998 to May, the PDDH accepted a monthly average of 82 complaints in this category compared with 87 per month for the period from June 1997 to May 1998 and 108 per month for June 1996 to May 1997. From June 1998 to May, the PDDH investigated 28.4 percent of the total complaints it received, and, of those accepted for investigation, found human rights violations in an average of 4.2 percent (covering all categories of human rights).

The PNC Inspector General's office, an entity separate from the PNC, answers directly to the Minister of Public Security and is charged with overseeing police activities and investigating allegations of human rights abuse. The IG investigated 181 cases of violation of the right of personal integrity during the year (a monthly average of 15), compared with an average of 15 per month in 1998 and 14 per month in 1997.

The PDDH continued to receive a large number of human rights complaints directed against the PNC (1,437 cases during the year, a monthly average of 120), indicating continuing problems. However, the PDDH's statistics showed a reduction in complaints over the course of the last few years; during that time, the police force more than doubled. The PNC grew from about 7,100 active members in June 1995 to 18,800 in the summer of 1999. From June 1998 to May, the PDDH accepted a monthly average of 126 cases against the PNC, compared with an average of 190 cases per month from June 1997 to May 1998, and 208 cases per month from June 1996 to May 1997.

Through July the IG's investigations of complaints that it received (71 percent initiated by private citizens and 29 percent by individuals or offices within the PNC) found sufficient merit in an average of 9 cases a month to remit them to the PNC internal affairs offices for further investigation. The large number of complaints involving the PNC reflected several factors: the PNC's authority to use force in carrying out arrests; its inexperience; the difficulty of its work in the face of critical levels of often violent crime; and a continuing need for training in human rights, the use of force, and correct arrest procedures.

The PNC internal affairs offices--the Disciplinary Investigative Unit (UID) and the Control Unit--continued their efforts to identify and punish improper or illegal police actions. During the year, the UID investigated 992 charges against the police. Based on the complaints investigated, during the year the Disciplinary Tribunal of the PNC dismissed 363 PNC agents (a monthly average of about 30) and sanctioned an additional 1,124 agents (a monthly average of about 94). At year's end, a total of 131 police agents were held in jail on criminal charges or were serving prison sentences.

Working together to improve PNC human rights awareness, the PDDH and the National Public Security Academy continued to expand and refine the human rights content of the standard curriculum for the academy's police officer basic training program.

There were allegations from children's rights groups that street children suffer from police brutality; the PNC denied these charges (see Section 5).

In August seven demonstrators and seven PNC agents were wounded in a violent clash between police and former militia members demanding government compensation for service rendered during the civil war (see Section 1.a.).

There were no further developments in 1998 shooting of FMLN communications adviser Leonardo Mena Marroquin. However, no evidence has been discovered indicating a political motive for the crime.

Prison conditions remained poor, but are improving measurably. The Government improved medical care and provided better food. As a result of the implementation in 1997 and 1998 of the new sentencing and penal codes, which limit preventive detention to more serious crimes, the prison population fell about 23 percent from December 1997 to December 1999. During the year, the Government increased the prison system's capacity by about 10 percent, and it now has the capacity for holding 6,480 prisoners in 18 penal facilities. While there was still some overcrowding in individual facilities, it was less severe than in past years, except in the women's facility. At year's end, there were 6,618 men held in 17 prison facilities with a combined capacity of 6,360; 296 women in the single women's prison with a capacity of 120; and 44 men in 3 secure hospital wards with a combined capacity of 75.

Gang violence, especially in the country's three largest and oldest penitentiaries and its juvenile holding facilities, continued to plague the prison system, despite government efforts to separate different gangs. According to press reports, 1 inmate was killed and over 40 were injured when fighting broke out in July between rival gangs at a youth rehabilitation center in San Francisco Gotera. In September a pitched battle between two rival gangs at a juvenile detention center left 1 detainee dead (killed by rival gang members) and 15 detainees wounded. PNC officials investigated allegations that guards had used excessive force in the riot. Prison authorities reported that during the year, there were nine deaths in the prison system due to violence. The authorities also reported that a total of 27 prisoners died during the year: 18 died as a result of illness, of whom 7 died from AIDS or other HIV-related illnesses; 6 died from wounds; 1 died in a prison riot; 1 died in an escape attempt; and 1 committed suicide. In September the Ministry of Interior assumed from the Ministry of Security and Justice responsibility for administering the prison system.

The 1995 Juvenile Offenders Law requires that all juveniles be housed separately from adults both prior to trial and while serving a prison sentence. Most criminal cases involving juveniles are brought to trial or conciliation within 3 months.

There are separate facilities for female detainees and prisoners.

The Government permits prison visits by independent human rights monitors, NGO's, and the media.

d. Arbitrary Arrest, Detention, or Exile

The Constitution prohibits arbitrary arrest; however, at times the PNC arbitrarily arrested and detained persons.

During the year, the PDDH accepted a total of 225 complaints (an average of 19 per month) for violations of personal liberty. The PDDH accepted a monthly average of 21 cases in this category from June 1998 to May, 47 cases per month from June 1997 to May 1998, and 62 per month from June 1996 to May 1997. PDDH statistics continued to show moderate improvement in PNC respect for personal liberty. The courts generally enforced a ruling that interrogation without the presence of counsel amounts to coercion, and that any evidence obtained in such a manner is inadmissible. As a result, police authorities generally delayed questioning until a public defender arrived. Substantially increased salaries and improved supervision contributed to a growing pool of public defenders, greatly increased their ability to represent indigent detainees properly, and improved the protection of human rights.

By law the police may hold a person for 72 hours before delivering the suspect to court, after which the judge may order detention for an additional 72 hours to determine if an investigation is warranted. Because of a lack of holding cells, such detainees often are sent to the regular prisons, where they may be placed together with violent criminals. The law allows 120 days to investigate serious crimes and 45 days for lesser offenses, before a judge must bring the accused to trial or dismiss the case. However, many cases were not completed within the legally prescribed time frame.

The 1997 Penitentiary Code permits release on bail for detainees who are unlikely to flee or whose release would not impede the investigation of the case. Because it may take several years for a case to come to trial, some prisoners have been incarcerated longer than the maximum legal sentence for their crimes. In such circumstances, a detainee may request a review by the Supreme Court of his or her continued detention. At the beginning of September, 4,867 inmates in the prison system were awaiting trial, a steady improvement over the situation as of September 1998, when 5,506 inmates were

awaiting trial, and at the end of 1997, when 6,167 inmates were awaiting trial. Also, beginning in 1998, new court cases were handled under new criminal and sentencing codes, which are designed to reduce the court caseload by sending cases to the prosecutor's office first and only allowing cases with merit to enter the court system. During the year, the justice of the peace courts, where most court cases originate, accepted a daily average of 157 cases. Of these, a daily average of 16 cases were resolved through conciliation and an additional 86 cases were resolved through other abbreviated procedures.

The new system also is designed to improve court efficiency by removing the time-consuming investigative responsibilities from the judge and placing them with the police and the prosecutor's office. The number of backlogged cases was reduced steadily. The Supreme Court reported that 28,539 backlogged cases were resolved during the year.

The Constitution prohibits forced exile, and it is not practiced.

e. Denial of Fair Public Trial

The Constitution provides for an independent judiciary, and the Government respects this provision in practice. However, the judiciary suffers from inefficiency and corruption.

The court structure has four levels: Justices of the peace, trial courts, appellate courts, and the Supreme Court. The Supreme Court selects justices of the peace, trial judges, and appellate judges from a list of nominees proposed by the National Judicial Council. The Council is an independent body provided for in the Constitution to nominate, train, and evaluate judges. All lower court judges serve until they voluntarily resign or are dismissed for cause. The Legislative Assembly elects, by a two-thirds majority, 5 of the 15 Supreme Court justices and 5 of the 15 alternate justices every 3 years from a list provided by the National Judicial Council and the National Association of Lawyers. A justice serves for 9 years and may be reelected. Separate court systems for family matters and juvenile offenders were established in 1996; they stress conciliation as an alternative to adjudication. The Criminal Sentencing Court has responsibility for executing and monitoring the sentences imposed by the trial courts.

Judges, not juries, decide most cases. A jury verdict cannot be appealed. However, the defendant may appeal the sentence to the Supreme Court for reduction. A jury verdict may be overturned by a mistrial determination resulting from serious problems with jury panel selection or errors in trial procedures.

The Government continued to implement the wide-ranging reforms of the criminal justice system that went into effect in 1998, specifically the Criminal Procedures Code (enacted in 1996) and the Penal and Penitentiary (Sentencing) Codes (enacted in 1997 and designed to speed up the trial process and reduce the number of detainees). The 1995 Juvenile Legal Code required minors under the age of 18 to be tried only in juvenile courts, included greater provisions for due process, raised the age of majority from 16 to 18 years, limited sentences for minors to a maximum of 7 years, and introduced alternatives to incarceration.

In June and September, the Legislative Assembly approved a number of additional changes to the Criminal Procedures and Penal and Penitentiary (Sentencing) Codes. These changes included the establishment of more severe penalties for some crimes (including increasing the maximum possible prison sentence from 30 to 35 years); the elimination of parole for some crimes; and the addition of new crimes to the code. One of the June reforms strengthened the legal protection afforded to children and the disabled by prescribing a 6-to-8-year prison sentence for individuals convicted of sexual aggression against adults incapacitated by a mental or physical condition or against minors. Under the Constitution, defendants have the right to a presumption of innocence, protection from self-incrimination, legal counsel, freedom from coercion, and compensation for damages due to judicial error. They also have the right to be present in court. While these rights are not always respected fully in practice, compliance with these provisions improved, in part due to increased judicial training programs and to evaluations and monitoring of judges conducted by the National Judicial Council and the Supreme Court. The Constitution and law require the Government to provide legal counsel to the indigent. While this requirement has not always been implemented in

practice, the Government continued to make progress during the year toward ensuring provision of legal assistance to indigents. In 1998 the Public Defender's office began adding new attorneys and increased salaries for public defenders. At year's end, the Public Defender's office had 339 attorneys compared with 279 in 1998 and 113 in 1997.

The new sentencing code implemented in April 1998 stresses criminal rehabilitation and prevention of future crimes and stipulates the provision of humane conditions in prisons as well as the separation of violent offenders and pretrial detainees. It also established the Criminal Sentencing Court. Previously, the same judge that investigated, judged, and sentenced the accused was also responsible for the imposition, monitoring, and suspension of the sentence. The new code also provides for alternatives to imprisonment for nonviolent offenders, designed to reduce prison overcrowding.

There are still problems of corruption and incompetence in the judicial system, but the Supreme Court stepped up its efforts to discipline judges. While the court system steadily improved, the process remains deliberative and slow. Pay and benefits for judges, prosecutors, and public defenders increased, and are sufficient to attract well-qualified individuals. However, despite significant investment in physical infrastructure, working conditions remain barely adequate, contributing to inefficiency. Training programs improved, but focused on overcoming inadequate university education rather than judicial procedure and advanced professional development. While representing a marked improvement in procedures, the new criminal and sentencing codes entail a massive reeducation effort for the judicial sector.

Impunity for those who are politically, economically, or institutionally well-connected continued, although there was some progress in addressing this historic problem. The continued systemic weaknesses in the criminal justice system contribute to this impunity. Such impunity might take the form of a reluctance on the part of authorities to pursue aggressively and to conclusion allegations involving acts of violence or other major crimes. There is a clear perception among the public that those who are well-connected, especially the rich and powerful, often have impunity with respect to the country's civil and criminal laws. Public suspicion that special groups receive special treatment under the law clearly diminishes confidence in the justice system, although during the year, the Government investigated prominent citizens involved in suspected criminal activity, including current and former government officials, political leaders (across the political spectrum), diplomats, and persons in the business community. However, there were no convictions, nor did the authorities make serious progress in prosecuting these individuals. The authorities also had little success in addressing general criminal impunity.

The implementation of judicial reforms continued to create confusion and uncertainty among police, prosecutors, public defenders, and the courts. Inadequate police coverage (due to limited resources and lack of sufficient personnel) and intimidation (especially by gangs) of victims and witnesses made it difficult to identify, arrest, and prosecute criminals, diminishing public confidence in the justice system.

There were no reports of political prisoners.

f. Arbitrary Interference with Privacy, Family, Home, or Correspondence

The Constitution requires the police to have the resident's consent, a warrant, or a reasonable belief that a crime is under way or is about to be committed, before entering a private dwelling, and government authorities generally respected these rights in practice.

Section 2 Respect for Civil Liberties, Including:

a. Freedom of Speech and Press

The Constitution provides for freedom of the press, and the Government respects this right in practice. Print and broadcast journalists from all major media outlets regularly and freely criticize the Government and report opposition views. Opposition figures are interviewed routinely on television and radio, and in the written press. According to major media associations, the

Government did not use direct or indirect means to control the media. However, some television stations complained that advertising agencies responsible for placement of government-funded public service announcements were biased in favor of media companies that generally supported government policy.

There are 5 daily newspapers, with a combined circulation of more than 250,000 copies per day, and 12 television stations. Four independent VHF television stations reach most areas of the country, while the government-owned and operated VHF station has poor signal quality even in San Salvador. Seven independent UHF stations serve San Salvador, and several can be received as far as 30 miles from the capital. Two cable television systems cover much of the capital, and other cable companies operate in San Miguel, Santa Ana, and Sonsonate. All carry the major local stations and a wide range of international programming. There are as many as 20 small cable television stations across the country, serving limited local areas. While most of them appear to be authorized broadcasters, several are believed to be pirating signals. Approximately 150 licensed radio stations broadcast on the FM and AM bands.

A provision in the new Criminal Code allows judges to close court proceedings if public exposure could prejudice the case. The media and the Inter-American Press Association (IAPA) asserted that the provision abridged press freedom. Several legislative deputies have argued that misuse of the provision could lead to impunity and corruption by limiting the "watchdog" role of the press.

The August 1997 murder of Lorena Saravia, a news reader employed by a commercial radio station, remained under investigation at year's end. In 1997 the IAPA listed this case among examples of violence directed against the media; however, there still is no concrete evidence linking the murder directly to Saravia's profession and the motives for the murder remained unclear.

There were no instances of censorship of books, other publications, films, or plays.

The Constitution provides for academic freedom, and the Government respects this right in practice, although it was criticized for efforts in 1998 and 1997 to implement minimum academic and administrative standards for the operation of universities.

b. Freedom of Peaceful Assembly and Association

The Constitution provides for peaceful assembly for any lawful purpose, and the Government respects this right in practice. There is no requirement for permits to hold public meetings, and public demonstrations are common and generally peaceful. However, in August police killed two demonstrators during a violent clash (see Section 1.a.).

The Constitution provides for freedom of association, and the Government respects this right in practice. In 1997 the Government implemented a 1996 law that charges the Ministry of Interior with registering, regulating, and overseeing the finances of NGO's and non-Catholic religious groups in the country. The law specifically exempts unions, cooperatives, and the Catholic Church, and the Interior Minister stated that it would not affect other churches, which already were being registered, under other laws, with the Ministry of Interior.

Leaders within the NGO community expressed continuing concerns that the law would be used by the Ministry to control certain organizations. Several small, domestic human rights NGO's have reported that they have not been able to register. The law requires the Ministry to respond to applications within 15 days; if the Ministry fails to do so, the law dictates that the NGO receives automatic registration. At year's end, the Supreme Court was considering a constitutional challenge to the NGO registration law brought by a group of NGO's in 1998.

c. Freedom of Religion

The Constitution provides for freedom of religion, and the Government respects this right in practice.

The Constitution specifically recognizes the Roman Catholic Church, and grants it legal status. In addition, the Constitution provides that other churches may register for such status in accordance with the law. The Civil Code specifies that a church must apply for formal recognition through the General Office of Nonprofit Associations and Foundations within the Ministry of Interior. The 1996 law and the 1997 implementing regulations on registration of NGO's and non-Catholic churches (see Section 2.b.) did not change the existing mechanism for church registration, and there were no allegations that churches encountered problems in obtaining registration.

d. Freedom of Movement Within the Country, Foreign Travel, Emigration, and Repatriation

The Constitution provides for these rights, and the Government respects them in practice.

The law does not include specific provisions for granting refugee or asylee status in accordance with the provisions of the 1951 U.N. Convention Relating to the Status of Refugees and its 1967 Protocol; however, the Government has procedures for handling such requests, in accordance with these principles.

The Government cooperates with the office of the U.N. High Commissioner for Refugees and other humanitarian organizations in assisting refugees. The issue of the provision of first asylum did not arise in 1999 and has not arisen in recent years. There were no reports of the forced return of persons to a country where they feared persecution.

Section 3 Respect for Political Rights: The Right of Citizens to Change Their Government

The Constitution provides citizens with the right to change their government peacefully, and citizens exercise this right in practice through periodic, free, and fair elections held on the basis of universal suffrage. The President and Vice President are elected every 5 years. The Constitution bars the President from election to consecutive terms. Voting is by secret ballot.

Ten political parties, representing the full political spectrum, fielded seven candidates in the March presidential elections. The Government did not restrict opposition participation, and there were no violent incidents during the campaign. Observers found that the vote was without major flaws and proceeded peacefully with fair access to the polls for all. Francisco Flores, the candidate of the ARENA party, won a clear majority in the first round of voting.

The March presidential election followed the free and fair 1997 legislative and municipal elections. In 1997 the FMLN--the principal opposition party--and its allies won nearly one-third of the assembly seats and many of the largest municipalities (including San Salvador, in which an FMLN coalition candidate was elected mayor). The governing ARENA party lost its legislative working majority and important mayoral races. The next two largest opposition legislative parties won significant blocs of seats.

There are no laws or overt practices that prevent women from voting or participating in the political and governmental systems; however, women are not accorded equal respect or stature in these areas and are underrepresented in government and politics. Women represented 49 percent of the registered voters in the March election, and party campaigns and slates reflected strong attention to this vote. The FMLN chose Maria Marta Valladares (known during the civil war as Nidia Diaz) as its vice presidential candidate. President Flores named women to head three ministries (Foreign Affairs, Education, and Environment), the Social Security Institute, and a substantial number of vice- and sub-ministerial jobs. In 1997 voters elected 14 women to the 84-seat legislature, an increase from the previous Assembly's 9. However, women held fewer positions (2 of 11) on the Assembly's governing board than in the previous legislature.

Minorities are not barred from voting or participating in government and politics; however, they are underrepresented.

Section 4 Governmental Attitude Regarding International and Nongovernmental Investigation of Alleged Violations of Human Rights

The Government demonstrated a willingness to discuss human rights issues and problems with domestic, international, and nongovernmental organizations. Numerous domestic NGO's operated freely as did various international human rights groups, including migration and other humanitarian and technical assistance groups. Domestic and international NGO's were required to register with the Government under the terms of the 1996 NGO registration law, and some reported difficulties (see Section 2.b.). In March unknown persons kidnaped and held for a number of hours the president of the Center for the Defense of the Consumer (see Section 1.b.). In April unknown assailants briefly kidnaped the head of the CDHES (see Section 1.b.).

The principal human rights investigative and monitoring body is the Ombudsman for the Defense of Human Rights, elected by the Assembly for a 3-year term. The Peace Accords specifically created the PDDH, which was established formally by a constitutional amendment that defined its role. Although the 1998 budget gave the PDDH a modest increase in funds, its investigative capacity remained limited due to resource constraints. The PDDH has been spread increasingly thin as the organization sought to expand its scope of attention, extend its presence throughout the country, and meet increased public demand.

In 1998 in a drawn-out and politically charged process, the Legislative Assembly elected Judge Eduardo Antonio Penate Polanco as Ombudsman to replace Victoria de Aviles, whose term expired early that year. However, after the vote and during the 30-day confirmation stage, the FMLN, the Social Christian Unity Party, and many in the NGO community questioned Penate's selection, citing a lack of experience in the human rights field, reports of poor performance as a judge, and charges that defendants in his court were not afforded the right to a speedy trial. The Supreme Court found no substance to these allegations, and the Assembly found no grounds to annul the election. The Assembly confirmed Penate in July 1998. However, his appointment and subsequent performance as Ombudsman continued to generate controversy during the year, with continuing charges from NGO's, the FMLN, and some other parties that he was unqualified. In January a coalition of NGO's petitioned the Assembly to remove Penate on grounds of incompetence. Penate claimed that the campaign against him was motivated by political considerations. The Assembly postponed action until after the June inauguration of the new President. On December 1, the Assembly's Political Committee created a subcommittee to evaluate Penate's tenure as Ombudsman and determine whether to present charges against him for inadequate performance. The subcommittee still was considering the matter at year's end.

Section 5 Discrimination Based on Race, Sex, Religion, Disability, Language, or Social Status

The Constitution states that all persons are equal before the law and prohibits discrimination based on nationality, race, sex, or religion. In practice, discrimination against women, the disabled, and indigenous people occurs in salaries, in hiring, and in access to credit and education.

There were some instances of violence against homosexuals. On June 29, an unknown assailant shot and wounded a man who was accompanying William Hernandez, director of the domestic homosexual rights organization Entre Amigos, as the two left the organization's office. At year's end, neither the motive nor the perpetrator were determined. In October Jose Armando Rivera, a transvestite prostitute known as "Doris," was murdered in San Salvador. In December Nestor Adonai Marengo (known as "Gloria"), another transvestite prostitute and a witness in the Rivera murder investigation, was killed in the same area. At year's end, the motive for the Rivera murder remained unclear; the killing occurred in an area known for illegal drug dealing and police had detained Rivera twice earlier in the year, once for threatening another transvestite prostitute and once for assaulting a police officer. The investigation of the Marengo killing also was inconclusive at year's end, although it suggested that the murder might be linked to his testimony in the Rivera case. Beginning in November, Hernandez reported receiving telephonic death threats that he believed were in response to public statements that Entre Amigos made about the Rivera murder. Although they took place in the same general area, as of year's end, there was no evident connection established between the two 1999 murders and a series of six murders of transvestite prostitutes in 1998. There was little progress in the investigations carried on by the PNC and the Attorney General's office into the 1998 murders. Both the 1998 and 1999 murders, and the threats against Hernandez, remained under investigation at year's end. In August Entre Amigos charged that PNC agents in Chalatenango department hit, insulted, and threatened a group of six homosexuals. The incident was under investigation at year's end.

Women

Violence against women, including domestic violence, is a widespread and serious problem. Once a taboo social subject, increasingly it is being recognized publicly and has become a topic for national debate. Government institutions such as the PDDH, the Attorney General's office, the Supreme Court, and the PNC coordinated efforts with NGO's and other organizations to combat violence against women through education, government efforts to increase enforcement of the law, and NGO support programs for victims. The National Secretariat for the Family maintains a hot line for victims to report domestic abuse. Statistics from the Salvadoran Institute for the Development of Women (ISDEMU) show a growing trend of reported domestic violence cases (principally against women) over the past few years. The upward trend of reports of violations may reflect broader public debate of family violence issues, rather than a worsening problem. ISDEMU received 6,451 cases of domestic violence through November (a monthly average of 586), compared with 3,543 cases in 1998 (a monthly average of 295) and 3,845 cases in 1997 (a monthly average of 320).

Incidents of domestic violence and rape continued to be underreported for several reasons: Societal and cultural pressures against the victim; a fear of reprisal; poor handling of victims by the authorities; fear of publicity; and the belief that cases are unlikely to be resolved. The PDDH noted that hundreds of domestic abuse victims who underwent psychotherapy refused to report their cases formally. ISDEMU received 359 cases of "sexual aggression" through November (a monthly average of 33) compared with 298 cases (a monthly average of 25) in 1998 and 479 cases (a monthly average of 40) in 1997. For the year, the Institute of Legal Medicine, using different criteria, reported 1,082 cases of sexual crime against women of all ages, an average of 89 cases per month. Under the new Criminal Procedures Code (implemented in 1998), victim testimony is admissible evidence. The former law did not allow victims to testify, and since the rape victim is often the only witness, this resulted in little chance for conviction in rape cases. In 1996 the Assembly repealed an old law that exonerated a rapist if he offered to marry the victim and she accepted.

Prostitution is common. There were credible reports that some women and girls were forced into prostitution (see Section 6.f.).

The Constitution grants women and men the same legal rights, but women suffer discrimination. The 1994 Family Legal Code amended laws that discriminated against women, especially affecting the large number of women in common-law marriages. The law also established special courts to resolve family disputes. Several NGO's are engaged in promoting women's rights and have conducted several rights awareness campaigns.

Women suffered from cultural and societal discrimination, resulting in significantly reduced economic opportunities. Priority generally is given to male children for schooling, to men for available jobs and promotions, and to sons for inheritances. Of the economically active female population, 65 percent worked in the informal economy. Women are not accorded equal respect or stature in traditional male-dominated areas such as agriculture and business. While there is no definitive evidence available, it is widely believed that women often are paid less than men for equal work. The one sector in which there is an exception to this practice is in the export processing zones and in-bond assembly plants, the largest source of new jobs, where women made up 85 to 90 percent of the work force (see Section 6.b.). However, even in this sector, men hold the great majority of management jobs. Training for women generally was confined to low-wage occupational areas where women already hold most positions, such as teaching, nursing, home industries, and small businesses.

Children

The Government's focus on children's rights and welfare was concentrated more toward reducing poverty and promoting family stability through economic growth than in direct expenditure on children's programs. Considerable publicity and the personal campaign of the former First Lady focused attention on this problem. The law requires education through the ninth grade (up to the age of 14). Although there was progress in increasing the availability and quality of schooling throughout the country, rural areas still fell short of providing a ninth grade education to all potential students. A 1997 study by the Business Foundation for Educational Development indicated that 17 percent of urban children and 34 percent of rural youth were not attending classes.

The Government worked closely through state institutions and with the United Nations Children's Fund (UNICEF) to promote protection and general awareness of children's rights. However, children continued to fall victim to physical and sexual abuse, abandonment, exploitation, and neglect. The Salvadoran Institute for the Protection of Children (ISPM), an autonomous entity, is responsible for protecting and promoting children's rights. The ISPM estimated that it averaged 2,600 to 2,700 children (its maximum capacity) in its shelters, some abandoned and others victims of mistreatment. For the year, it reported a monthly average of 126 cases of physical mistreatment (compared with 109 per month in 1998), a monthly average of 55 cases of negligence (compared with 21 per month in 1998), and a monthly average of 59 cases of abandonment (compared with 10 per month in 1998). Approximately 55 percent of all its cases involved girls. Using different criteria, ISDEMU reported a significant increase in child abuse. ISDEMU recorded 9,751 cases of "abuse of a minor" through November (a monthly average of 886), compared with 6,312 cases (a monthly average of 526) for 1998, and 4,334 cases (a monthly average of 361) for 1997.

A 1997 study by the NGO network Prociportes estimated that 1,000 children (up to age 16) were living on their own in the streets, 42 percent of whom were under the age of 5. Substance abuse (glue and paint sniffing) was an endemic problem among urban street children. In 1998 the Assembly passed a law regulating the sale of glue and other substances used as street drugs, prohibiting their sale to minors. There are allegations from children's rights advocates that street children suffer from police brutality. The PNC denies these charges and has incorporated PDDH human rights training into programs for police units that deal with juveniles. The PDDH also has called for the creation of drug treatment centers for minors.

For the year, the Institute of Legal Medicine recorded 1,073 cases of sexual abuse of children under 15 years of age (a monthly average of 90). A majority of the victims were female. The ISPM reported that it received a monthly average of 9 cases of sexual abuse during the year, compared with an average of 8 per month in 1998. According to the PDDH, over 85 percent of all abuse occurs in schools and at home, and only a small percentage of these cases were reported to the authorities.

In June the Legislative Assembly approved the addition of a new provision to the Criminal Code that mandates a 6-to-8-year prison sentence for individuals convicted of sexual aggression against minors (see Section 1.e.).

The PDDH estimated that 270,000 minors work, mostly as street vendors (see Section 6.d.). Besides losing their opportunity for an education, these children often fell victim to sexual abuse and were exploited and forced into prostitution (see Sections 6.c. and 6.f.). Since 1997 the PDDH, NGO's, and the media have conducted a publicity and investigative campaign to highlight the plight of children. A 1998 study on child prostitution by the Commission on the Family, the Woman, and the Child of the U.N. High Commissioner for Human Rights concluded that child prostitution in the country was promoted by poverty, lack of a strong nuclear family, discrimination against women, and organized crime. A separate NGO study in 1998 on the same problem indicated that at least 44 percent of the estimated 1,300 prostitutes in 3 major red light districts of San Salvador were between the ages of 13 and 18. The NGO report pointed to poverty and familial problems as the two major factors pushing children and adolescents into prostitution.

The Government, the International Program for the Elimination of Child Labor (IPEC), and local NGO's and business groups consulted throughout the year and joined forces in August and September to begin several projects to combat child labor in specific industries (see Section 6.d.).

The level of infant malnutrition decreased, but continued to be a problem. A National Family Health Poll, conducted in 1998 and released in December 1999, found that 1.1 percent of children under 5 years of age suffered from grave malnutrition, with an additional 21 percent experiencing less severe malnutrition. The Ministry of Health listed malnutrition as one of the 10 principal causes of infant mortality in the country. The Government has a national plan for infants designed to increase access to potable water, iodized salt, and vitamins, and to encourage breast feeding, but all of these remain problem areas, especially among the rural poor.

Except for the war wounded, who have secured both government and international funding for rehabilitation and retraining programs, the Government has no program to combat discrimination against the disabled. There are no laws mandating provision of access to public or private buildings for the disabled. The Government has not enforced the 1984 law requiring employers with over 50 workers (private companies, state-owned enterprises, and government offices) to have "persons with physical limitations" represent a minimum of 2 percent of their work force. Access by the disabled to basic education was limited due to lack of facilities and appropriate transportation. There was no provision of state services for the physically disabled. Only a few of the Government's community-based health promoters have been trained to treat the disabled, and they rarely provided such service, tending rather to focus on life-threatening conditions and preventive care for mothers and children. The Ministry of Health estimated that some form of disability afflicts 10 percent of the population. In 1997 the National Council of Disabled People estimated that there were 500,000 persons with disabilities, of whom 12,500 had disabilities directly attributable to the civil war. Other factors contributing to the large number of disabled persons were lack of prenatal care, misuse of pesticides in food production, malnutrition, auto accidents, and criminal violence.

There were few organizations dedicated to protecting and promoting the rights of the disabled. Foreign funds for badly needed rehabilitation services channeled through the Telethon Foundation Pro-Rehabilitation, a local private voluntary organization, helped address numerous rehabilitation issues and provided alternatives for the education and rehabilitation of the disabled population. A semiautonomous institute, the Salvadoran Rehabilitation Institute for the Disabled (ISRI), also provided assistance to the disabled. The ISRI offered medical treatment, counseling, special education programs, and professional training courses. Founded in 1957, the ISRI has 10 centers throughout the country and received assistance from the Government and national and international private and nongovernmental organizations.

In June the Legislative Assembly approved a new provision to the Criminal Code that mandates a 6-to-8-year prison sentence for individuals convicted of sexual aggression against persons incapacitated by a mental or physical condition (see Section 1.e.).

Indigenous People

The country is ethnically homogeneous, although a very small segment of the population still claims indigenous status. The Constitution makes no specific provisions for the rights of indigenous people.

Early in the century, facing active repression, most indigenous people adopted local customs and successfully assimilated into the general population, from which they are generally indistinguishable. There are a few very small communities whose members still wear traditional dress and maintain traditional customs to a recognizable degree without repression or interference. These small indigenous groups exist in the poorest parts of the rural countryside where employment opportunities are few and domestic violence is a problem. Indigenous people reportedly earned less than other agricultural laborers, and indigenous women in particular had little access to educational and work opportunities. As with the poor rural sector in general, access to land was a growing problem confronting indigenous people. Few possessed titles to land, and bank loans and other forms of credit were extremely limited.

There are some small, active indigenous associations. The largest and best known is the National Association of Indigenous Salvadorans (ANIS). In 1998 a long-running internal political fight and land dispute caused a major split in ANIS. One faction held a direct election that replaced long-time leader Adrian Esquino Lisco, who was accused of corruption and lying. Esquino refused to step down, claiming that his leadership position was perpetual. Police arrested him on civil charges of occupying ANIS property illegally after his removal as leader and criminal charges of fraud in his administration of ANIS. Esquino was exonerated of the criminal charge of fraud. In August the Supreme Court ruled against Esquino's 1998 petition to stop eviction procedures against him and his extended family, on charges of illegal possession of land and several houses. In the last 2 years of his leadership of ANIS, Esquino had charged that the Government was targeting the indigenous community, and especially its leaders, with legal harassment and threats. There has been little evidence to support these allegations, and the new ANIS leadership does not endorse them.

Religious Minorities

During February and March, eight break-ins and burglaries occurred at offices of the Lutheran Church, including four at the Church's Office of Human Rights. The PNC opened an investigation into the incidents. Initially there was concern that these incidents might have been attacks directed against the Lutheran Church or its work in human rights. However, they occurred in high-crime areas, and the available evidence indicated that they were common crimes. The incidents remained under investigation at year's end.

Section 6 Worker Rights

a. The Right of Association

The Constitution prohibits the Government from using nationality, race, sex, creed, or political philosophy as a means to prevent workers or employers from organizing themselves into unions or associations. In practice, the Government generally has respected this right. However, in March the International Labor Organization Committee on the Freedom of Association cited the Government for its failure to provide protection or remedy for a number of labor leaders fired in 1998 in the process of privatizing the state-owned telephone company. The decision concluded that the Labor Code imposed a series of excessive formalities for the recognition of a trade union, and found that the application of the law was used to refuse legal status to a number of efforts to establish a trade union in the telephone company. The Committee also emphasized that changing ownership of a business should not threaten unionized workers and questioned the propriety of the January 1998 dismissal of 72 labor leaders, but noted that 70 of this group had accepted legal compensation. The Committee called on the Government to complete the process for recognition of the telephone union, amend the Labor Code to remove the excessive formalities that the Committee concluded infringe on the right to form a union, seek to have the two union leaders who had not yet accepted severance pay reinstated, and ensure that future changes of company ownership do not threaten labor leaders or labor organizations. A legal action brought by the union to oblige the Ministry of Labor to grant the union's 1998 petition for recognition still was pending before the Supreme Court at year's end.

Military personnel, police, and government workers may not form unions (but are allowed professional and employee organizations) and may not strike. The 1994 Labor Code streamlined the process required to form a union in the private sector, extending union rights to agricultural, independent, and small-business workers, and extending the right to strike to union federations. The Labor Code prohibits partisan political activity by unions. The unions routinely ignored this prohibition, but the Government took no punitive action against them.

There is a small organized labor sector with approximately 150 active unions, public employee associations, and peasant organizations, representing over 300,000 citizens, approximately 20 percent of the total work force. By law only private sector workers have the right to form unions and strike; some employees of autonomous public agencies may form unions if they do not deal with essential services. In fact, some of the most powerful labor groups are public employee associations. These public sector labor groups take on the same responsibilities as unions, including calling technically illegal strikes and collective bargaining. The Government has negotiated with public employee associations and generally treated strikes as legitimate, although the Labor Code provides for mandatory arbitration of public sector disputes. However, during the year, the Government refused to accede to strikers' demands in the cases of several public sector strikes, which continued at year's end.

Two judicial employee associations went on strike on November 30 to protest a presidential veto of a bill authorizing pay raises for judicial workers. The Supreme Court ended the strike by raising the workers' pay using funds from within its existing budget. The public water works union went on a partial strike in December, unsuccessfully demanding pay increases and opposing water works privatization. The union for nonmedical employees of the Social Security Institute (ISSS) staged a series of partial strikes and blockages of public and employee access to public medical facilities during the year to protest the ISSS's failure to pay raises negotiated by the previous administration in 1998, a presidential decree freezing public sector wages, and alleged government plans to privatize two hospitals and eventually the entire health system. The workers defied a court decision that found the strike illegal and ordered the strikers back to work. The ISSS fired over 200 strikers who refused to honor the court order to return to work, and withheld pay and legal bonuses of other strikers. The President vetoed legislation passed in November that would have granted pay increases for ISSS employees and restored pay to teachers

whose pay was docked for striking illegally earlier in the year. The legislation was passed by a bloc of opposition parties outside the framework of the year's national budget. Following these developments, the ISSS's medical professionals' union announced its support for the strikers; both groups threatened to abandon the public hospitals unless the President created a high-level committee to negotiate with the strikers, and the ISSS rehired fired workers and paid wages and bonuses that had been withheld from other strikers. In December mediation efforts failed and the dispute went to binding arbitration, as called for by the Labor Code. The Government and the ISSS did not accede to any of the strikers' demands, and the two unions broadened the strike. The standoff continued at year's end.

The law prohibits antiunion actions before a union is legally registered and provides specific job protection to workers whose names appear on a union application. The Labor Code forbids foreigners from holding positions in unions.

Unions and other labor organizations freely affiliated with international labor organizations.

b. The Right to Organize and Bargain Collectively

The Constitution and the Labor Code provide for collective bargaining rights, but only to employees in the private sector and to certain categories of workers in autonomous government agencies, such as utilities and the port authority. However, both private sector unions (by law) and public sector employee associations (in practice) used collective bargaining.

The Ministry of Labor oversees implementation of collective bargaining agreements and acts as a conciliator in labor disputes in the private sector and in autonomous government institutions. In practice, ministers and the heads of autonomous government institutions often negotiate with labor organizations directly, relying on the Ministry of Labor only for such functions as officially certifying unions. The Ministry often seeks to conciliate labor disputes through informal channels rather than attempt to enforce regulations strictly, which has led to charges that the Ministry is biased against labor. Corruption continued to affect labor inspectors and courts, but improvements in training and an increase in pay in 1997 for Ministry of Labor employees have begun to address this problem.

The Constitution prohibits discrimination against unions. It provides that union officials at the time of their election, throughout their term, and for 1 year following their term may not be fired, suspended for disciplinary reasons, removed, or demoted except for legal cause. Employers generally observed this provision in practice, but credible reports continued of employers using illegal pressure, including dismissal of labor activists, to discourage organizing. The law requires employers to rehire employees fired for any type of union activity, and the Ministry of Labor has increased efforts to enforce this requirement. However, in many cases, employees chose to take a cash payment in lieu of returning to work.

There are six export processing zones (EPZ's) and several "maquila" (in-bond assembly or processing) plants operating outside of these zones. The Labor Code applies in the EPZ's; there are no special EPZ labor regulations. During the last few years, most EPZ companies and a large portion of the maquila plants have accepted the provisions of voluntary codes of conduct from their parent corporations or foreign purchasers. In addition, two EPZ's have instituted their own codes of conducts for all their tenants. These codes include worker rights protection clauses. In 1997 the apparel industry association announced implementation of an industrywide code of conduct with worker rights protection. The great majority of companies in the EPZ's provided much better salaries and working conditions than those offered elsewhere in the private sector (see Section 6.e.). However, there were credible reports that some factories dismissed union organizers, and only one EPZ company was unionized, with two active plant unions.

On August 7, a group of workers at Industrias Caribbean Apparel (ICA), a Korean-owned EPZ maquila company, formed a small sectional union of the textile sector union within the Federation of Associations and Independent Unions of El Salvador (FEASIES) and applied to the Ministry of Labor for formal recognition. On August 9, ICA fired two employees who were members of the sectional union's executive board; in early September, the company fired four more union board members. FEASIES and the first four employees fired filed a complaint against ICA with the Ministry of Labor for violation of worker rights and the Labor Code, which specifically grants job protection to leaders of unions in formation. In August local labor leader Giovanni Fuentes charged that he had received anonymous telephone warnings and thinly veiled threats from ICA's

lawyer as a result of his work to assist in the organization of the union. None of the fired ICA union board members reported receiving similar threats. The Ministry of Labor investigated the charges against ICA, and in October recognized the union and completed its registration; instructed ICA to pay back wages to the fired union board members; and advised ICA to meet with the fired workers to work out a mutually acceptable solution to their disagreements or face legal penalties. After a series of Ministry-hosted mediation sessions, representatives of the union board, Fuentes, and representatives of ICA appeared in person at the Ministry to report that they had reached a mutually acceptable economic settlement.

On November 24, the Salvadoran Workers' Central (CTS), an umbrella labor organization, charged that the Korean-owned factory DOALL in the San Marcos EPZ had fired illegally 22 of 38 workers who had formed a union and applied to the Government for recognition on November 20. A week later, the CTS asserted that the number of union employees dismissed rose to 35. DOALL claimed that several of the union's organizers had resigned voluntarily 2 hours before the union was constituted and that the union therefore was not legal. On November 24, the Ministry of Labor began investigating the case. In December, following pressure from its major foreign customer, DOALL claimed that it had offered to rehire the fired workers. However, the union claimed that these workers had not been asked to return to work. At year's end, the Ministry's investigation was still underway and the dispute was unresolved. In 1998 the PDDH released a detailed analysis of the maquila sector (covering both EPZ and non-EPZ in-bond plants) that indicated that 20.8 percent of the sector's workers "trusted" unions while 55.3 percent "did not trust" unions. Credible accusations persisted that some factories abused their workers, and that some women were not hired because they were pregnant. According to the PDDH report on maquilas, 37.7 percent of the workers surveyed stated that they had been mistreated, 37.7 percent had been threatened, 3.2 percent had been hit in some fashion, 3.5 percent had been harassed sexually by bosses, and 3 percent had been harassed sexually by other workers. Although the Ministry of Labor improved its efforts to increase inspection and follow up on such complaints, it still had insufficient resources to cover all the EPZ's, much less the much larger national private sector.

Although under 1996 legislation, the Government authorized the Ministry of Economy to withdraw free zone privileges from companies that violated labor regulations, there have been no instances in which this has been threatened publicly. There is also a tripartite (government, business, and labor) commission, established in 1996, to help resolve conflicts in EPZ and other bonded companies.

c. Prohibition of Forced or Compulsory Labor

The Constitution prohibits forced or compulsory labor, except in the case of calamity and other instances specified by law, and the Government generally enforces this provision; however, there were credible complaints of forced overtime in the maquila sector and of forced prostitution by children.

While not dealing directly with the issue of forced overtime, the PDDH report on the maquila sector indicated that 7.8 percent of workers in its survey sample were not paid legally required extra pay for working beyond the normal 44-hour work week, a strong indication of forced overtime. The survey also found that 50.2 percent of maquila workers did not work any overtime and 28.7 percent averaged 5 hours or less overtime a week (roughly 10 percent of regular time). Although not specifically prohibited by law, forced and bonded labor by children are covered by the general prohibition, and there were no reports of their use in the formal sector; however, there was strong evidence that minors have been forced into prostitution (see Section 5.). There also were credible reports that women were forced into prostitution.

d. Status of Child Labor Practices and Minimum Age for Employment

The Constitution prohibits the employment of children under the age of 14. Minors, age 14 or older, may receive special Labor Ministry permission to work, but only where such employment is absolutely indispensable to the sustenance of the minor and his or her family. This is most often the case with children of peasant families who traditionally work during planting and harvesting seasons. Those legal workers under the age of 18 have special additional rules governing conditions of work (see Section 6.e.). The law limits the workday to 6 hours for youths between 14 and 18 years of age and sets a maximum normal workweek for youths at 36 hours.

Orphans and children from poor families frequently work for their own or family survival as street vendors and general laborers in small businesses, mostly in the informal sector (see Section 5.). Children in these circumstances often do not complete compulsory schooling through the ninth grade (up to the age of 14) as the law requires. A 1998 joint report of the ISPM and UNICEF, based on nationwide data collected in 1996, indicated that of the 1.8 million children between 5 and 17 years of age, roughly 6.6 percent, or 118,800, worked without attending school, and 36,200 of these were under the age of 14. An additional 5.8 percent, or 104,400, worked but also attended school. Of these, 55,300 were under the age of 14. The primary reason for working for over 45 percent of each group was familial economic survival. However, the average income for child workers was less than half of the minimum wage and represented 18.7 percent of average family income. The second most important reason for working for 10 percent of the nonstudent child workers and nearly 34 percent of the child workers attending school was to learn a trade. Child labor is not found in the industrial sector and has disappeared in the EPZ's. The PDDH report on the maquila industry found no workers under the age of 17 and only 0.5 percent who were 17 (a legal working age, with some restrictions).

The Ministry of Labor is responsible for enforcing child labor laws and made an effort to do so; however, scarce resources and the difficulty of monitoring the large informal sector limited its effectiveness outside the urban formal sector. In 1997 the Government helped establish the National Committee for the Eradication of Child Labor (CNETI). The CNETI was designed to be a coordinating body of the Government, NGO's, and the private sector (labor and business) to combat child labor. However, there has been little CNETI activity. The Labor Code does not specifically prohibit forced and bonded labor of children, but they are covered by its general prohibition; however, there were reports that minors were forced into prostitution (see Sections 6.c. and 6.f.).

The Government collaborated with the International Program to End Child Labor under the auspices of the ILO on two country projects and two Central American regional projects aimed at directly combating child labor. These projects are designed to discourage children from working, promote schooling and recreation, help develop new economic options for both children and their families, and eventually be self-sustaining and permanent. In August the Government, IPEC, and the ISPM inaugurated a project in the southeastern shore area to remove children from the unhealthful harvesting of mangrove clams. In September the Government, the ISPM, local NGO's, the Coffee Growers Association, and IPEC joined forces and resources to begin a project in the coffee sector to help remove children from the fields and enroll them in school. A similar project was planned to help children in the sugar sector, with participation from the Sugar Foundation (representing the sugar industry). Also in September, the Government, IPEC, and an NGO began implementing a project that focused on removing children from the cottage production of fireworks.

e. Acceptable Conditions of Work

The minimum wage is set by a tripartite (government, labor, business) committee. Effective May 1, 1998, the committee set the minimum daily wage at \$4.81 (42.00 colones) for commercial, industrial, and service employees; \$3.57 (31.20 colones) plus food allowance for coffee plantation workers; \$2.61 (22.80 colones) plus food allowance for sugar and cotton plantation workers; and \$2.47 (21.60 colones) plus food allowance for all other agroindustrial workers. By law a full-time minimum wage employee is paid a full 7 days (56 hours) for the 44-hour normal workweek and receives an average of 1 month's wage a year in required bonuses plus 2 weeks of paid vacation. There were continuing allegations that the maquila sector underpaid workers. The PDDH 1998 report on maquilas found that 42.3 percent of the maquila workers surveyed received the minimum wage, 25.1 percent earned an amount moderately above the minimum wage, and 10 percent earned significantly more than the minimum wage. Of the 23.3 percent of the workers earning less than the minimum wage, many were apprentices or workers in training, and under the law were not ensured the minimum wage. The minimum wage with benefits does not provide a decent standard of living for a worker and family. The Ministry of Labor is responsible for enforcing minimum wage laws and does so effectively in the formal sector.

The law limits the workday to 8 hours, and it mandates premium pay for longer hours. The Labor Code sets a maximum normal workweek of 44 hours. It requires bonus pay for overtime and limits the workweek to no more than 6 days for all workers.

The Constitution and the Labor Code require employers, including the Government, to take steps to ensure that employees are not placed at risk in their workplaces. These laws prohibit the employment of persons under 18 years of age, and of all women, in occupations considered hazardous. Nevertheless, health and safety regulations are outdated, and enforcement, while improved, is inadequate. The Ministry of Labor attempts to enforce the applicable regulations and has devoted resources to improving the professional training of its staff and inspectors. Increasingly, its investigations lead to fines or other findings favoring workers. The Ministry has restricted powers and only limited, but growing, resources to enforce compliance. The maquila sector continues to be subject to charges that it maintains "sweatshop" conditions in its factories. The PDDH study found that 70 to 80 percent of the workers surveyed were satisfied with bathrooms, drinking water, and eating facilities but that only 53 percent were satisfied with the ventilation, i.e., there were problems with dust and heat. The serious problems with working conditions that existed were concentrated in smaller, non-EPZ plants. In general, the larger plants (which employ the majority of maquila workers) have adequate to excellent working conditions. Some of the largest companies have dust control, air conditioning, on-site medical facilities, and enforced safety regimes.

Workers can remove themselves from dangerous work situations without jeopardizing their employment only in situations where they can present a medical certificate issued by a doctor or the Social Security Institute indicating that their health is at risk while using certain equipment or substances.

Trafficking in Persons

The law does not prohibit specifically trafficking in persons. However, it stipulates that any crime involving "commerce in women or children" automatically carries a 30 percent increase in the prison sentence or fine that otherwise would be imposed for that crime. The Government enforces this provision.

There were credible reports of some regional trafficking in women both to and from the country for purposes of forced prostitution. According to press reports, during the year agents of the international police organization Interpol operating in the country discovered a prostitution network trafficking young girls from several Central American countries to work in bars along the border with Guatemala. Interpol reportedly had rescued approximately 20 Salvadoran girls from such prostitution rings over the past 3 years. There also were unconfirmed charges that children were brought into the country from neighboring countries and forced to beg in the streets.

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